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Case Number: 25STCV25900 Hearing Date: June 25, 2026 Dept: 300

CASE NUMBER: 25STCV25900

CASE NAME: Jose Manuel Dulanto vs. Archbishop William

E. Lori, et al.

TYPE OF MOTION: Demurrer

FILING PARTY: Defendants Steven Owens,

David B. Simpson, and Simpson Employment Law, APC

RESPONDING

PARTY: Unopposed

HEARING DATE: June 25, 2026

Case Background

This is an action arising from Plaintiff Jose Manuel Dulanto's (Plaintiff) prior employment with the Knights of Columbus, Plaintiff's subsequent lawsuits against Knights of Columbus, Case Nos. BC568311 and BC656164, and the subsequent appeals. Plaintiff brought this action against his prior employer, their defense counsel, and various judges and court personnel involved in the prior lawsuits.

On September 4, 2025, Plaintiff, in pro per, filed a complaint against Defendants Archbishop William E. Lori; David B. Simpson; Knights of Columbus; Steve Owens; Jennifer M. Fontaine; Aaron A. Buckley; Michael P. Linfield; Terry Green; Natalie P. Stone; Gonzalo C. Martinez; Elwood

Lui; David W. Slayton; Eva McClintock; Wolfflick, Simpson, Kachaturian & Bouayad; Simpson Employment Law APC; Paul-Plevin-Sullivan-&-Connaughton LLP; Quarles & Brady LLP; and DOES 1 through 10 asserting causes of action for: (1) Fraud Upon the Court; (2) Coercion; (3) Breach of the Existing Implied in Fact Contract of Employment; (4) Non Payment of Wages; (5) Failure to Compensate for All Hours Worked; (6) Failure to Maintain Required Records; (7) Violation of California Business and Professions Code; (8) Unjust Enrichment; and (9) Unjust Enrichment.

On February 3, 2026, Defendants Steven Owens, David B. Simpson, and Simpson Employment Law, APC (collectively, Owens Defendants) filed the instant demurrer. The demurrer is unopposed.

On March 4, 2026, the Owens Defendants filed an amended notice of demurrer.

On March 9, 2026, the Owens Defendants filed a second amended notice of demurrer.

On March 11, 2026, the Owens Defendants filed a third amended notice of demurrer.

On April 17, 2026, the Owens Defendants filed a fourth amended notice of demurrer.

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Instant Pleading

The Owens Defendants demur to all nine causes of action asserted within Plaintiff's complaint.

Request for Judicial Notice

The Owens Defendant's request for judicial notice as to Exhibits A-L is GRANTED pursuant to Evidence Code section 452(c) and/or (d).

Decision

The demurrer is SUSTAINED as to all causes of action

asserted against the Owens Defendants without leave to amend.

Legal Standard

Demurrer

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).) A party may also demur to a complaint on the grounds that the complaint is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f), is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

Meet and Confer

Before filing a demurer or motion to strike, the moving party must meet and confer in person or by telephone with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading. (Code Civ. Proc., §§ 430.41, 435.5.)

Here, the Owens Defendants Counsel, David B. Simpson (Counsel) states that on January 31, 2026, Counsel met and conferred with Plaintiff via telephone regarding the alleged deficiencies in the complaint but were unable to reach an agreement. (Simpson Dec., ¶ 2-3.) As such, the Court finds that the Owens Defendants have satisfied their meet and confer obligation prior to the filing of the instant demurrer.

Discussion

The Owens Defendants demur to all nine causes of action asserted within Plaintiff's complaint.

1.

First and Second Causes of Action

The Owens Defendants argue that the first and second causes of action for Fraud Upon the Court and Coercion fail because Plaintiff has failed to allege that he was the victim of extrinsic fraud required to invoke a court's equitable jurisdiction and because the claims are barred by the litigation privilege.

Here, Plaintiff alleges that "Defendants conspired and defrauded the judicial system in Cases BC568311 and BC656164 to procure, and procured immunity for employers Steve Owens and Knights of Columbus under the terms of a fraudulent Form 1819-FA 4-11 of 'independent contractor contract'...." (Complaint, ¶ 16.) Plaintiff alleges that "Defendant criminally coerced Plaintiff to sign a dismissal falsely stating in court that defendant employer Steve Owens was not employer party." (Ibid.) Plaintiff alleges that "David B. Simpson...[and]...Steven Owens...coerced Plaintiff to falsely state in court (BC568311) that Steve Owens was not employer and that because Plaintiff refused, Defendants retaliated and harmed Plaintiff with wrongful termination." (Ibid.) Further, Plaintiff alleges that "Defendant[] David B. Simpson...fraudulently induced the Courts and procured the exoneration of the

employer Steve Owens by misguiding the Judges and Justices to get a 'dismissal'...." (Ibid.) The prayer for relief seeks "[t]he reinstatement of the Cases BC568311 and BC656164 at the state before the fraud upon the Court was perpetrated." (Complaint, p. 21.)

"A litigant may collaterally attack a final judgment for lack of personal or subject matter jurisdiction or for granting relief that the court had no power to grant, but may not collaterally attack a final judgment for nonjurisdictional errors. If a judgment, no matter how erroneous, is within the jurisdiction of the court, it can only be reviewed and corrected by one of the established methods of direct attack." (Estate of Buck (1994) 29 Cal.App.4th 1846, 1848.)

However, "[t]he final judgment of a court having jurisdiction over persons and subject matter can be attacked in equity after the time for appeal or other direct attack has expired only if the alleged fraud or mistake is extrinsic rather than intrinsic. Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court....A party who has been given proper notice of an action, however, and who has not been prevented from full participation therein, has had an opportunity to present his case to the court and to protect himself from any fraud attempted by his adversary. Fraud perpetrated under such circumstances is intrinsic, even though the unsuccessful party does not avail himself of his opportunity to appear before the court." (Bottom v. Bottom (1962) 210 Cal.App.2d 784, 786-787.)

Here, as previously stated by this Court, the complaint's allegations, to the extent they assert a cognizable claim, constitute intrinsic fraud because the allegations describe alleged fraud that occurred within the proceedings where Plaintiff was presumably present and participating. (See Complaint, ¶¶ 16-18.) Thus, such allegations cannot support a collateral attack on the final judgments. The complaint requests "[t]he reinstatement of the Cases BC568311 and BC656164 at the stage before the Fraud upon the Court was perpetrated." (Complaint, p. 21.) Such requested relief constitutes an impermissible collateral attack on a final judgment. "A judgment rendered in one department of the superior court is binding on that matter upon all other departments until such time as the judgment is overturned. Appellate jurisdiction to review, review, or reverse decisions of the superior courts is vested by our Constitution only in the Supreme Court and the Courts of Appeal." (Ford v. Superior Court (1986) 188 Cal.App.3d 737,

742 [internal citations omitted].) “A judgment rendered in one department of the superior court is binding on that matter upon all other departments until such time as the judgment is overturned.” (Glade v. Glade (1995) 38 Cal.App.4th 1441, 1450.)

Further, the Court finds that the litigation privilege applies.

Under Civil Code section 47(b), an absolute privilege exists for “any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that has some connection or logical relation to the action.” (Weeden v. Hoffman (2021) 70 Cal.App.5th 269, 288.) The privilege is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards.” (Ibid.) “[T]he litigation privilege is given a broad interpretation...[and] is held applicable to any communication, whether or not it amounts to a publication...and all torts except malicious prosecution.” (Ibid.) “The threshold issue in determining whether the litigation privilege applies is whether the defendant’s conduct was communicative or noncommunicative. The litigation privilege applies only to communicative acts and does not privilege tortious courses of conduct.” (Herterich v. Peltner (2018) 20 Cal.App.5th 1132, 1139 [internal citations and quotations omitted].) “The pleadings and process in a case are generally viewed as privileged communications.” (Ibid.) “The privilege also applies to noncommunicative acts that are necessarily related to privileged communicative conduct.” (Ibid.)

“[W]hen applicable, [the privilege] is ‘absolute,’ because it applies regardless of the communicator’s ‘motives, morals, ethics or intent.’” (Mireskandari v. Gallagher (2020) 59 Cal.App.5th 346, 366.)

Here, the Court finds, as detailed above, that Plaintiff’s first and second cause of action against the Owens Defendants are premised on communications, or communicative acts necessarily related to such communications, made during judicial proceedings. As such, the Court finds that such allegations fall squarely within the litigation privilege.

Accordingly, the demurrer is SUSTAINED on this ground without leave to amend.

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2.

Third through Ninth Causes of Action

The Owens Defendants argue that Plaintiff's third through ninth causes of action fail because they are barred by res judicata and the applicable statute of limitation.

Res Judicata

The doctrine of res judicata precludes parties, or their privies, from relitigating a cause of action determined with finality in a prior proceeding. (Smith v. ExxonMobil Oil Corp. (2007) 153 Cal.App.4th 1407, 1413-14; Wright v. Ripley (1998) 65 Cal.App.4th 1189, 1193.) "Res judicata bars the relitigation not only of claims that were conclusively determined in the first action, but also matter that was within the scope of the action, related to the subject matter, and relevant to the issues so that it could have been raised" and includes 'matters which were raised or could have been raised, on matters litigated or litigable.'" (Burdette v. Carrier Corp. (2008) 158 Cal.App.4th 1668, 1674-1675. Accord Mark v. Spencer (2008) 166 Cal.App.4th 219, 229 [bars claims that parties had fair opportunities to litigate].)

Res judicata applies as "to all legal theories, proofs, and demands for relief that might have been presented in the first matter, provided both suits assert the same cause of action." (Ferraro v. Carmarlinghi (2008) 161 Cal.App.4th 509, 541, fn. 21. [citing Mycogen Corp. v. Monsanto (2002) 28 Cal.4th 888, 897]; Burdett v. Carrier Corp. (2008) 158 Cal.App.4th 1668, 1687.) Res judicata applies as a bar to splitting a cause of action for partial, later litigation, or relitigation of the same cause of action based on another legal theory or associated with different relief, that could have been sought in the prior action. (Noble v. Draper (2008) 160 Cal.App.4th 1, 10; Hamilton v. Asbestos Corp., Ltd. (2000) 22 Cal.4th 1127, 1146.)

Res judicata precludes the relitigation of a cause of action only if (1) the decision in the prior proceeding is final and on the merits; (2) the present action is on the same cause of action as the prior

proceeding; and (3) the parties in the present action or parties in privity with them were parties to the prior proceeding. (*Busick v. Workmen's Comp. Appeals Bd.* (1972) 7 Cal.3d 967, 974.) "The burden of establishing preclusion by prior adjudication (*res judicata*) rests squarely on the party asserting it." (*Ferraro*, *supra*, 161 Cal.App.4th at p. 529.)

The Owens Defendants argues that *res judicata* applies because all seven employment claims asserted are materially identical to the employment claims pleaded and litigated to final judgment in Plaintiff's prior 2014 lawsuit (LASC BC568311).

Here, Plaintiff's prior lawsuits ended with a final judgment on the merits. (See Request for Judicial Notice (RJN), Exhibits A-L.) Further, the instant lawsuit involves the same parties, Owens and Plaintiff, as Plaintiff's prior lawsuit (LASC BC568311).

For purposes of claim preclusion or *res judicata*, California courts apply the primary rights rule and ascertain whether two proceedings involve identical causes of action. (*Federal Home Loan Bank of San Francisco v. Countrywide Financial Corp.* (2013) 214 Cal.App.4th 1520, 1530.) "For purposes of *res judicata*, a cause of action consists of the plaintiff's primary right to be free from a particular injury, the defendant's corresponding primary duty and the defendant's wrongful act in breach of that duty. [Citation.]" (*Ibid.*) "The violation of a primary right gives rise to only a single cause of action. [Citation.]" (*Ibid.*) (*Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 798.) Accordingly, "[a] cause of action is the right to obtain redress for a harm suffered, regardless of the specific remedy sought or the legal theory (common law or statutory advanced." (*Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 798.) "[T]he determinative factor is the harm suffered." (*Ibid.*) Thus, if two actions seek redress for the same harm, the fact that one presents a different theory or ground for relief is immaterial. (*Ibid.*)

In this case, Plaintiff's third through ninth cause of action seeks redress for the same issues or causes of action previously litigated in LASC BC568311. (Compare RJN, Exhibit B, with Complaint.) Specifically, Plaintiff seeks to recover for the same alleged violations arising from his employment with Knights of Columbus. Accordingly, Plaintiff's third through ninth cause of action asserted against Owens are barred by *res judicata*.

Statutes of Limitations

The Owens Defendants argue that Plaintiff's third through ninth causes of action are all barred under the applicable statute of limitations period.

Under Code of Civil Procedure section 338(a), an action upon liability created by statute, other than a penalty of forfeiture, must be brought within three years. If such claim is pursued as an unfair business practice under the Business and Professions Code, a four-year statute of limitations applies. (Business and Professions Code, § 17208.) If premised upon a contract, such claim must be brought within four years. (Code Civ. Proc., § 337.)

Here, Plaintiff's third through ninth causes of action concern and arise from Plaintiff's employment with the Knight's of Columbus. However, such employment ended in March 2016, over ten years ago. (RJN, Exhibit H, p. 2.) As such, Plaintiff's claims fall outside any applicable limitations period to such claims.

Accordingly, the demurrer is SUSTAINED on this ground, without leave to amend.

Conclusion

Based on the foregoing, the demurrer is SUSTAINED as to all causes of action asserted against the Owens Defendants without leave to amend.